

School Supply Agreement

This School Supply Agreement ("Agreement") is made and entered into on this **[Date]**, by and between:

Supplier:

[Your Partner Company Name]
[Your Partner Company Address]
[Your Partner Company Email]
[Your Partner Company Number]

Buyer:

[Your Company Name]
[Your Company Address]
[Your Company Email]
[Your Company Number]

WHEREAS, the Buyer, an academic institution, requires a reliable supply of educational supplies and materials to support its educational programs and activities; and

WHEREAS, the Supplier is engaged in the business of supplying educational materials and has the capability to provide the required supplies;

NOW, THEREFORE, in consideration of the mutual covenants and promises herein contained, the parties hereto agree as follows:

1. Definitions

1.1 "Goods" refers to the educational supplies and materials listed under Exhibit A, which includes but is not limited to textbooks, stationery, laboratory equipment, and any other materials necessary for educational purposes.

1.2 "Delivery Date" refers to the date by which the Goods must be delivered to the Buyer as specified in this Agreement. It is a crucial milestone to ensure the timely provision of supplies to support the educational activities of the institution.

1.3 "Payment Date" refers to the date by which the Buyer must complete payment for the Goods delivered as stipulated in this Agreement. Timely payment is essential to maintain a good working relationship between the parties.

2. Supply of Goods

2.1 Description of Goods: The Supplier agrees to provide the Goods as detailed in Exhibit A of this Agreement. These goods shall meet the specifications and quality standards outlined therein, ensuring they are fit for educational use and comply with any relevant regulations.

2.2 Quantity: The Supplier shall supply the quantities of Goods as requested by the Buyer from time to time. This provision allows the Buyer to adjust their order based on changing needs, ensuring they have an adequate supply of materials at all times.

3. Delivery

3.1 Place of Delivery: The Goods shall be delivered to the Buyer at [Your Company Address] or another location as mutually agreed upon in writing by both parties. This clause ensures clarity regarding where the Goods are to be delivered, reducing the risk of misunderstandings or delays.

3.2 Delivery Schedule: The Supplier agrees to deliver the Goods according to the schedule as agreed upon and as updated from time to time. Adhering to the delivery schedule is crucial to ensure that the institution has the necessary supplies to support its educational activities.

3.3 Risk of Loss: The risk of loss or damage to the Goods will remain with the Supplier until delivery and acceptance by the Buyer. This clause protects the Buyer from bearing the risk of any damage that may occur during transit, emphasizing the Supplier's responsibility for safe delivery.

4. Quality Assurance

4.1 Quality Standards: The Supplier warrants that all Goods supplied under this Agreement shall meet the quality standards specified in Exhibit A and shall be free from defects. This provision ensures that the Buyer receives Goods of the specified quality, essential for their intended educational use.

4.2 Inspection: Upon delivery, the Buyer shall have the right to inspect the Goods and reject any portion that does not conform to the agreed standards or specifications. This clause protects the Buyer's interests by allowing them to ensure that the Goods meet their requirements before accepting them.

5. Payment Terms

5.1 Price: The price for the Goods shall be as stated in Exhibit B of this Agreement. The clarity of the price terms prevents misunderstandings and disputes regarding the cost of the Goods.

5.2 Payment Schedule: Payment for the Goods shall be made by the Buyer within **[30/60/90] days** from the date of delivery. This provision sets out a clear timeline for payment, ensuring that the Supplier receives payment promptly upon delivering the Goods.

5.3 Late Payments: Any late payments shall incur an interest rate of **[X]% per month** until paid in full. This clause incentivizes timely payment and compensates the Supplier for any delays in receiving payment.

6. Confidentiality

6.1 Confidential Information: Both parties agree to treat all information relating to the terms of this Agreement and the business operations of the other party as confidential and shall not disclose such information without prior written consent. This confidentiality clause protects sensitive information shared between the parties, ensuring that it is not disclosed to unauthorized third parties.

7. Term and Termination

7.1 Term: This Agreement shall commence on **[Commencement Date]** and shall remain in effect until **[End Date]** unless terminated earlier in accordance with the terms of this Agreement.

7.2 Termination for Cause: Either party may terminate this Agreement for cause by providing **[30/60] days'** written notice if the other party is in material breach of any term of this Agreement and fails to cure such breach within **[30] days** after receipt of notice of such breach.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of [Your State], without regard to its conflict of law principles. This clause establishes the legal framework under which the Agreement will be interpreted and enforced, providing clarity on the applicable jurisdiction.

9. Dispute Resolution

All disputes arising out of or in connection with this Agreement shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association. This provision outlines the method for resolving disputes, promoting a quick and efficient resolution process outside of the court system.

10. Miscellaneous

10.1 Entire Agreement: This Agreement, together with its Exhibits, constitutes the entire agreement between the parties and supersedes all prior agreements and understandings, whether written or oral, relating to its subject matter. This clause ensures that the Agreement represents the complete understanding between the parties, preventing any prior agreements or understandings from affecting its interpretation.

10.2 Amendment: No amendment or modification of this Agreement shall be valid or binding unless executed in writing by both parties. This provision ensures that any changes to the Agreement are documented and agreed upon by both parties, preventing misunderstandings or disputes regarding modifications.

IN WITNESS WHEREOF, the parties hereto have executed this School Supply Agreement as of the day and year first above written. This statement signifies the parties' intent to be bound by the terms of the Agreement and serves as a formal acknowledgment of their agreement.

Signature

[Date]

Signature

[Date]